

25TRCV04321 25TRCV04321

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

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Case Number: 25TRCV04321 Hearing Date: July 7, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

MARY

DIMMICK,

Plaintiff,

Case No.:

25TRCV04321

vs.

[Tentative]

RULING

CALIFORNIA

WATER SERVICE COMPANY, et al.,

Defendants.

Hearing

Date: July 7,
2026

Moving

Parties: Defendant City of Rolling Hills

Responding

Party: Plaintiff Mary Dimmick

(1)

Demurrer to Complaint

(2)

Motion to Strike Portions of
Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The

demurrer is OVERRULED.

Defendant

City is ordered to file an answer within twenty days.

The

motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

The

prayer for prejudgment interest is STRICKEN.

BACKGROUND

On December 19, 2025, plaintiff Mary Dimmick filed a
complaint against California Water Service Company, City of Rolling Hills

Estates, County of Los Angeles, and State of California for (1) negligence, (2) dangerous condition of public property, and (3) wrongful death.

On February 19, 2026, plaintiff filed a request for dismissal as to State of California.

On April 2, 2026, plaintiff filed a request for dismissal as to County of Los Angeles.

LEGAL AUTHORITY

Demurrer

When considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirza* (2007) 147 Cal. App. 4th 740, 747.

Strike

"The court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendant

City of Rolling Hills demurs to the second cause of action for dangerous condition of public property on the ground that it fails to identify the statute under which the City is being sued and the complaint is uncertain, ambiguous, and unintelligible.

The

complaint alleges that Earl C. Dimmick was an individual born November 30, 1986 and passed away on July 16, 2025.

Complaint, ¶2. Plaintiff is

entitled to commence and maintain an action for the wrongful death of decedent pursuant to CCP §377.60 based upon her relationship to decedent as her mother and lawful heir. She does not have any

statutory heirs that would supersede the rights of plaintiff to bring a wrongful death cause of action. Id., ¶3. On July 14, 2025, decedent was lawfully riding an electric scooter west bound on the northwards pathway located at or near 2577 Palos Verdes Drive North, east of Dapplegray Lane, when suddenly decedent was confronted with a dangerous defect on public property, specifically water utility covers and/or access points which had been deteriorating for a prolonged period of time, including cracking and a pothole

in the pathway, causing decedent to crash on the pavement, causing fatal injuries and related damages to plaintiff.

Id., ¶20. Defendants and/or

authorized agents negligently maintained, managed, operated, repaired, controlled, and/or inspected water utility covers and/or access points at the site of the incident, approximately eight feet north of Palos Verdes Drive North and 304 feet east of Dapplegray Lane ("subject premises"). Id., ¶21.

Defendant

requests the Court take judicial notice of plaintiff's government claim, which plaintiff does not oppose. Under

"description of how damage or injury occurred," the claim states, in part: "Claimant's son, Earl Dimmick ('Decedent'), was riding an electric scooter west bound on the northwards sidewalk located at or near Palos Verdes Drive North, when suddenly Decedent was confronted with a dangerous defect on public property, photographs of the condition are attached As Decedent encountered the dangerous defect it caused him to crash on the pavement, causing fatal injuries and damages." Under "what particular act or omission," the claim states: "Failure of the City of

Rolling Hills and its Public Works Department and/or its employees or agents, acting within the scope of employment, by creating a dangerous condition on public property by a Governmental actor and/or its agents of which the City of Rolling Hills Estates had actual and constructive notice. Furthermore, the City of Rolling Hills, and/or its employees or agents, failed to properly inspect, repair, maintain the property, and/or failed to give adequate warning of the dangerous condition, allowing for a dangerous condition on the northwards sidewalk at or near Palos Verdes Drive North. The City owned and/or controlled the property where the dangerous condition was present on the date of the incident."

Second cause of action for

dangerous condition of public property

The

elements of a cause of action for a dangerous condition on public property are:

(1) a dangerous condition existed on the public property at the time of the injury; (2) the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the municipality had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it. Gov.

Code §835.

“‘[A] claim alleging a dangerous condition may not rely on generalized allegations but must specify in what manner the condition constituted a dangerous condition.’ A plaintiff’s allegations, and ultimately the evidence, must establish a physical deficiency in the property itself. A dangerous condition exists when public property ‘is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,’ or possesses physical characteristics in its design, location, features or relationship to its surroundings that endanger users.” *Cerna v. City of Oakland* (2009) 161 Cal. App. 4th 1340, 1347-38 (citations omitted).

Defendant

City argues that plaintiff fails to plead a statutory basis for liability against the City. Defendant also argues that plaintiff fails to allege facts, with required specificity, as to any dangerous condition of public property. Defendant further contends that plaintiff added a new theory of liability in her complaint, which was not included in her tort claim. Moreover, defendant argues, plaintiff has failed to establish standing as the sole successor in interest as she has not filed the requisite declaration pursuant to CCP §377.32.

In opposition, plaintiff argues that

she alleges every element of Gov. Code §835.

As to plaintiff’s omission of the statute, plaintiff argues that the City cannot claim confusion about plaintiff’s theory as the cause of action is titled “dangerous condition of public property” and “[a]ny technical omission of the statute number is curable by amendment.”

Plaintiff also argues that the complaint does not impermissibly depart from the government claim. Plaintiff

further argues that she did not need to file a CCP §377.32 declaration because the complaint expressly brings the wrongful death claim in plaintiff’s individual capacity and not as successor in interest.

In reply, defendant reiterates its

argument that the complaint introduces a new theory as to the water utility covers.

The Court rules as follows: The Court finds that plaintiff has

sufficiently alleged standing. Plaintiff is not asserting a survivor cause of action and thus a declaration under CCP §377.32 is not required. Further, although plaintiff has not specifically alleged the code section Gov. Code §835, the statutory basis is “dangerous condition of public property” as the cause of action is titled. Further, plaintiff has sufficiently alleged the elements for dangerous condition.

As to defendant’s argument that plaintiff is alleging a “new” theory based on defective water utility covers that was purportedly not reflected in plaintiff’s tort claim, “[t]he purpose of [Gov. Code §§910, 945.4] statutes is ‘to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate without the expense of litigation.’ Consequently, a claim need not contain the detail and specificity required of a pleading, but need only ‘fairly describe what [the] entity is alleged to have done.’” *Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal. 4th 441, 446 (citations omitted). “In order to comply with the claim presentation requirement, the facts alleged in the complaint . . . must be consistent with the facts contained within the government claim.” *Castaneda v. Department of Corrections & Rehabilitation* (2013) 212 Cal. App. 4th 1051, 1060. The Court finds that the allegations are consistent with the claim.

The demurrer is OVERRULED.

Motion to strike

Defendant City requests that the Court strike prayer at para. 6 for “prejudgment interest.”

Defendant argues that prejudgment interest cannot be pled against a public entity. See Civil Code §3291, which excludes public entities.

In response, plaintiff states that she does not oppose the motion to the extent that it seeks to strike the prayer for prejudgment interest as against the City.

The motion is GRANTED.

ORDER

The
demurrer is OVERRULED.

Defendant
City is ordered to file an answer within twenty days.

The
motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

The
prayer for prejudgment interest is STRICKEN against defendant City of Rolling
Hills Estates.

Plaintiff
is ordered to give notice of ruling.